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Case Number: 24SMCV00010 Hearing Date: August 31, 2026 Dept: M

CASE NAME: Glowa v. MDR L&M Apartments, LLC,
et al.

CASE NO.: 24SMCV00010

MOTION: Motion for
Summary Judgment; and

Motion
for Sanctions (CCP §§ 128.5, 128.7)

HEARING DATE: 8/31/2026

Legal
Standard

Summary Judgment

A party may move for summary judgment in any action or proceeding if it is contended the action has no merit or that there is no defense to the action or proceeding. (CCP, § 437c(a).) "The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.)

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one

or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs.” (CCP, § 437c(f)(1).) If a party seeks summary adjudication as an alternative to a request for summary judgment, the request must be clearly made in the notice of the motion. (Gonzales v. Superior Court (1987) 189 Cal.App.3d 1542, 1544.) “[A] party may move for summary adjudication of a legal issue or a claim for damages other than punitive damages that does not completely dispose of a cause of action, affirmative defense, or issue of duty pursuant to” subdivision (t). (CCP, § 437c(t).)

To prevail, the evidence submitted must show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (CCP, § 437c(c).) The motion cannot succeed unless the evidence leaves no room for conflicting inferences as to material facts; the court has no power to weigh one inference against another or against other evidence. (Murillo v. Rite Stuff Food Inc. (1998) 65 Cal.App.4th 833, 841.) In determining whether the facts give rise to a triable issue of material fact, “[a]ll doubts as to whether any material, triable, issues of fact exist are to be resolved in favor of the party opposing summary judgment...” (Gold v. Weissman (2004) 114 Cal.App.4th 1195, 1198-99.) “In other words, the facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences there from must be accepted as true.” (Jackson v. County of Los Angeles (1997) 60 Cal.App.4th 171, 179.) However, if adjudication is otherwise proper the motion “may not be denied on grounds of credibility,” except when a material fact is the witness’s state of mind and “that fact is sought to be established solely by the [witness’s] affirmation thereof.” (CCP, § 437c(e).)

Once the moving party has met their burden, the burden shifts to the opposing party “to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.” (CCP § 437c(p)(1).) “[T]here is no obligation on the opposing party... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element... necessary to sustain a judgment in his favor.” (Consumer Cause, Inc. v. SmileCare (2001) 91 Cal.App.4th 454, 468.)

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“The pleadings play a key role in a summary judgment motion. The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues and to¿frame¿the outer measure of materiality in a summary judgment proceeding.” (Hutton v. Fidelity National Title Co.¿(2013) 213 Cal.App.4th 486, 493, quotations and citations omitted.) “Accordingly, the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability¿as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings.” (Ibid.)¿

CCP

§ 128.5 Sanctions

CCP section 128.5 provides that a trial court may order a party, the party’s attorney, or both, to pay the reasonable expenses, including attorney’s fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay. “Actions or tactics” include almost any action in a litigation, except for sanctions which are governed by separate statutes. (See e.g. CCP §§ 128.5(e), 425.16(c).)

“Frivolous” means totally and completely without merit or for the sole purpose of harassing an opposing party. “Because the Legislature intended that the conditions for sanctions under the current version of section 128.5 mirror section 128.7, [the California Court of Appeal has held] that the objective standard used to evaluate section 128.7 sanctions motions applies to section 128.5.” (San Diegans for Open Government v. City of San Diego (2016) 247 Cal.App.4th 1306, 1318.) “Although the objective standard of proof is easier to satisfy, the Legislature intended to ‘retain the extremely high proof required for such awards’ with its applicability lying with ‘truly egregious behaviors.’ ” (Id. at 1318-19.) An objectively reasonable attorney standard applies to this determination. (Id. at 1319.) “Whether a claim is meritless or for the sole purpose of harassment must be evaluated by examining whether the factual allegations of the claim had evidentiary support.” (Ibid.) The “ultimate burden of providing sanctionable conduct remains with the moving party.” (Id. at 1320.) The moving party must provide evidence

sufficient to establish a prima facie case that the action is meritless or for the sole purpose of harassment. (Id. at 1319-1320.) If the court finds that this evidence has satisfied the moving party's burden, then the burden shifts to the opposing party to refute the prima facie case. (Id. at 1320.)

CCP § 128.7 Sanctions

CCP section 128.7 states that a court may impose sanctions on a party or attorney that presents a pleading, petition, motion, or other similar papers in the following circumstances:

- 1) the document is presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.
- 2) the claims, defenses, and other legal contentions therein are not warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.
- 3) the allegations and other factual contentions have no evidentiary support;
- 4) the denials of factual contentions are not warranted on the evidence.

Under section 128.7, a court may impose sanctions if it concludes a pleading was filed for an improper purpose or was indisputably without merit, either legally or factually. (Bucur v. Ahmad (2016) 244 Cal.App.4th 175, 189–190.) A claim is factually frivolous if it is “not well grounded in fact” and is legally frivolous if it is “not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law.” (Ibid.) In either case, to obtain sanctions, the moving party must show the party's conduct in asserting the claim was objectively unreasonable. (Ibid.) A claim is objectively unreasonable if “any reasonable attorney would agree that [it] is totally and completely without merit.” (Ibid.) However, “section 128.7 sanctions should be ‘made with restraint’ [Citation], and are not mandatory even if a claim is frivolous.” (Peake v. Underwood (2014) 227 Cal.App.4th 428. at

448.)

The Legislature enacted section

128.7 based on Rule 11 of the Federal Rules of Civil Procedure (28 U.S.C.), as amended in 1993 (rule 11). (*Musaelian v. Adams* (2009) 45 Cal.4th 512, 518, fn. 2.) As a result, federal case law construing rule 11 is persuasive authority on the meaning of section 128.7. (*Guillemin v. Stein* (2002) 104 Cal.App.4th 156, 168.) Even though an action may not be frivolous when it is filed, it may become so if later-acquired evidence refutes the findings of a pre-filing investigation and the attorney continues to file papers supporting the client's claims. (*Childs v. State Farm Mut. Auto. Ins. Co.* (5th Cir.1994) 29 F.3d 1018, 1025.) As a result, a plaintiff's attorney cannot "just cling tenaciously to the investigation he had done at the outset of the litigation and bury his head in the sand." (*Ibid.*) This requires an attorney to conduct a reasonable inquiry to determine if his or her client's claim was well-grounded in fact and to take into account the adverse party's evidence. (*Ibid.*)

In addition to the above

requirements, CCP section 128.7(c)(1) requires that a motion for sanctions under CCP section 128.7 be made separately from other motions and that notice of the motion must be served, but not filed with the Court, unless, within 21 days after service of the motion, the challenged paper is not withdrawn. This 21-day time period is known as a "safe harbor" period and its purpose is to permit an offending party to avoid sanctions by withdrawing the improper pleading during the safe harbor period. (*Li v. Majestic Industry Hills LLC* (2009) 177 Cal. App. 4th 585, 591.) This permits a party to withdraw a questionable pleading without penalty, thus saving the court and the parties time and money litigating the pleading as well as the sanctions request. (*Ibid.*)

SUMMARY

JUDGMENT MOTION

Plaintiff's Objections

Plaintiff correctly notes that the

motion gave an insufficient notice period. CCP section 473c(a)(2) requires 81 days of notice, plus two additional days in cases of electronic service. The motion was initially noticed via electronic service on June 10, 2026, for a November 17, 2026, hearing. This initial notice gave an appropriate notice

period of 160 days. However, Defendants successfully moved ex parte to advance the motion to August 31, 2026. Notice of the August 31 hearing was given on June 17, 2026, via electronic service. This notice gave an insufficient notice period of 75 days. Even improperly calculating the notice period from June 10 would only result in a notice period of 82 days—one day short.

The Court therefore cannot grant the motion on the current record. The Court would have to, at least, continue the motion by 81 days to comply with the jurisdictional notice period. The Court would be inclined to do so, since there is no longer a pending trial. The Court would also find grounds for a continuance pursuant to section 437c(h), since Plaintiff has apparently not been able to conduct necessary discovery. However, as will be discussed below, the Court would not find that Defendants met their initial burden on the merits.

Summary Judgment Analysis

Defendants MDR L&M Apartments LLC and Common Management Co. move for summary judgment or adjudication. Defendants notice a single issue: "There was no slippery condition that caused a fall."

The complaint states two causes of action for premises liability and negligence. The well-known elements of negligence are: 1) a legal duty owed to plaintiff to use due care; 2) breach of duty; 3) causation; and 4) damage to plaintiff. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.) Premises liability is a form of negligence where a plaintiff must show 1) defendant owed a duty based on his ownership or control of property; 2) defendant was negligent in the use, maintenance or management of the property; 3) the plaintiff was harmed; and 4) defendant's negligence was a substantial factor in causing plaintiff's harm. (Brooks v. Eugene Burger Management Corp. (1989) 215 Cal.App.3d 1611, 1619.)

"The owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence." (Brooks, supra, 215 Cal.App.3d at 1619.)

"If the dangerous condition is brought about by third persons, 'then to impose liability the owner must have either actual or constructive knowledge of the dangerous condition or have been able by the exercise of ordinary care to

discover the condition, which if known to him, he should realize as involving an unreasonable risk to invitees on his premises.” (Jones v. Awad (2019) 39 Cal.App.5th 1200, 1208, citation omitted.) While an owner of premises is not an insurer of the safety of its patrons, the owner still owes them a duty to exercise reasonable care in keeping the premises reasonably safe. (Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1205.) For example, a “store owner exercises ordinary care by making reasonable inspections of the portions of the premises open to customers, and the care required is commensurate with the risks involved.” (Ibid.) The exercise of ordinary care may require the owner to take greater precautions or to make more frequent inspections, but ultimately, the owner must use the care required of a reasonably prudent person acting under the same circumstances. (Ibid.)

Whether a particular condition poses an unreasonable risk of harm would be a traditional question of fact for the jury. (See Brummett v. County of Sacramento (1978) 21 Cal.3d 880, 887 [due care as element of negligence presents question of fact for the jury]; Bigbee v. Pacific Tel. & Tel. Co., (1983) 34 Cal.3d 49, 56 [it is error to grant summary judgment on a question of fact unless under the undisputed facts there is no room for a reasonable difference of opinion]; see also Victor v. Hedges (1999) 77 Cal.App.4th 229, 243 [summary judgment properly granted where motorist parked vehicle on sidewalk to show a compact disc system located in rear of vehicle to acquaintance, since motorist did not submit acquaintance to an unreasonable risk of harm, and where acquaintance sustained injuries after oncoming vehicle jumped curb and struck acquaintance].) Typically, to show that a condition posed no unreasonable risk at summary judgment, a defendant would have to present evidence that the alleged condition was open and obvious, or trivial. (See Krongos v. Pacific Gas & Electric Co. (1992) 7 Cal.App.4th 387, 393 [generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition]; Caloroso v. Hathaway (2004) 122 Cal.App.4th 922, 927 [a property owner is not liable for damages that are caused by a minor, trivial or insignificant defect in property].)

The Complaint relevantly alleges that on January 6, 2022, Plaintiff was injured when she slipped and/or tripped and fell in the stairwell of the subject Premises. (Compl., ¶¶ 5, 14.) Defendants so carelessly and negligently owned, operated, controlled, supervised, inspected, leased, maintained, designed, constructed, cleaned, repaired and managed said Premises such that they, amongst other things, negligently failed

to take adequate and sufficient measures to prevent, warn, control or deter the harmful, and injurious hazards of the Premises. (Id.) Defendants' failure to maintain, clean, and/or dry fluids, liquids, water, urine and/or feces in the stairwell at the Premises created an unreasonable risk of harm which Defendants and each of them knew about because the Defendants created the condition, or which Defendants in the exercise reasonable care should have discovered through reasonable periodic inspections of the Premises. (Id., ¶ 28.)

Defendants

present expert testimony that does not negate the allegations of the existence of a dangerous condition (i.e., that the stairwell was not "slippery") or causation from that condition. The expert merely declares that he determined, to reasonable degree of scientific certainty, based on friction measurements taken at the scene, that the flooring surface of the subject staircase where Plaintiff alleged a slip and fall incident was "slip resistant" and "not considered slippery according to current ASTM standards." (Gardiner Decl., ¶ 14.) Additionally, he concludes that "the subject staircase did not violate any relevant codes for stairway tread or handrail dimensions according to the 2010 California Building Code." (Id.) Defendants present the material fact that the "concrete steps were subsequently tested and determined to be slip resistant and not slippery according to ASTM standard F2508-23. (UMF 4.) Even if believed, such a conclusion would not demonstrate that there was no slippery conditions on the stairwell at all, that the conditions did not pose an "unreasonable risk of harm," or that such conditions could not have caused Plaintiff's fall.

Defendants largely rely on the

reasoning provided by Howard v. Omni Hotels Management Corp. (2012) 203, Cal.App.4th 403. In Howard, the plaintiff slipped in a bathtub and was injured. At the summary judgment hearing, the Howard defendants introduced engineering evidence of ASME and ASTM standards on coefficient of friction and the standard was 0.04 pursuant to the latter, and that during testing, the tubs were 0.16, or four times the standard required. (Id. at 414.) The Howard plaintiff failed to create a dispute of material fact by presenting evidence that he "felt a slick surface," and submitted a declaration disputing the 0.04 standard as "very very lenient" and "so low that it is very slippery," recommending a 0.30 to 0.40 standard. (Id. at 415.) The trial court and appellate court found that the opposing declarations "did not have sufficient factual support" and "presented only conclusory statements of opinion." (Id. at 417, 430.)

The instant case is readily distinguishable from Howard. In their argument, Defendants fail to address that the engineering evidence concerned the tub manufacturer's liability was on a products liability claim, including a defective design claim. (Id., at 415, 418, 423-430.) On the other hand, the motion for summary judgment filed by the hotel that owned the tub was based on inadequate notice of the slippery condition of the tub. (Id., at 416, 418, 430-434.) As to the hotel (Omni), the Howard court found that motion was proper (and the trial court's granting of a new trial was in error) on the issue of actual or constructive notice. The Howard court noted that the plaintiff "does not appear to be claiming that Omni's maintenance of the bathtub in his hotel room was faulty (such as if it had allowed excessively slippery foreign substances to accumulate there). Instead, he is now arguing that the evidence of other falls in other Omni hotels was enough to create a duty in Omni to take further protective measures." (Id., at 432, emphasis added.) The Howard court ultimately reasoned:

"We disagree with the trial court that Howard's evidence raises a triable issue of fact on Omni's actual notice of a dangerous condition of its property. We do not need to rely on any legal conclusions about the Kohler product safety criteria to reach that conclusion, although we do not ignore the commonsense factors that bathtubs can be slippery, or that Omni purchased a widely used brand name tub in furnishing its hotel. First, the incident reports do not show substantially similar accidents, regarding any detail about the conditions of or in the bathtubs, or the circumstances or medical conditions of the guests before they fell in the bathtubs. The reports do not provide such evidence of sufficient facts or circumstances to support an inference of Omni's breach of duty, but support only speculation or conjecture that Omni should have recognized earlier that Kohler tubs presented a dangerous condition of its property, if they did."

(Id. at 434, emphasis added.)

Thus, Howard does not stand for the proposition that a landowner-defendant may meet its initial burden on summary judgment by showing its property complied with certain safety standards and thus no dangerous condition existed or caused the subject injuries.

The instant action does not concern products liability of the stairwell itself, but slippery foreign substances

accumulated on the stairwell. Defendants do not challenge their notice of the pled slippery conditions. Critically, Defendants provide no authority that providing “slip resistant” stairs would automatically meet their standard of care. The proffered expert does not opine on the appropriate standard of care for landlords in Defendants’ position. He fails to connect the cited ASTM standard with the legal standard of care in premises liability actions. He also fails to state his familiarity with the appropriate standard of care. Defendants also provide no authority that meeting “current ASTM standards” would meet their standard of care or entirely negate the possibility of causation. Furthermore, the Complaint alleges that the stairwell had “fluids, liquids, water, urine and/or feces,” which could fairly constitute a dangerous and slippery condition despite the slip resistant stairwell and compliance with ASTM standards. (Compl., ¶ 14.) Permitting urine and/or feces to languish in a common area stairwell, despite notice, could present an unreasonable risk to invitees on the Premises. In light of these material distinctions, Howard does not support summary judgment.

The expert testimony has other potential infirmities under the circumstances which would prevent summary judgment. Due to uncertainty surrounding the location of the incident, Defendants’ expert picked two locations and then asserted that “it is understood that the same flooring materials of the subject staircase were present at my inspection as on the day of the incident.” (Gardiner Decl. ¶ 7, 10, 11.) A reasonably fact finder could view this testing as an inadequate analogue for the alleged slippery conditions. Additionally, Plaintiff testified that her fall was not only caused by a slippery floor, but a forced, mid-stride effort to evade the animal feces and urine while she was descending the stairs. (Ullrich Decl., Ex. A [Plaintiff’s Depo. at 42:1-4, 17-20; 45:25-46:3; 54:15-17].) The expert apparently failed to consider these circumstances or address this issue.

Therefore,
Defendants do not meet their initial burden of production. Accordingly, the motion is DENIED.

SANCTIONS

Analysis

The Court does not find that the motion for summary judgment was “totally and completely” without merit, made for the “sole purpose” of harassment, or made primarily for an improper purpose. The motion sought adjudication of the causes of action with competent evidence of an

expert with personal knowledge of the relevant facts. The Court concluded that the expert's conclusions fell short of demonstrating Defendant's entitlement to judgment as a matter of law. The expert testimony, if believed, could convince a trier of fact at trial that the condition was not dangerous at the time.

While ultimately unsuccessful in the context of the motion, at worst, the contentions should be considered to be a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.

The notice period issue would not mean that the motion itself was frivolous or unwarranted. This issue could have been cured by resetting the motion for a later hearing with adequate notice.

Accordingly, the motion for sanctions is DENIED.